

COMMITTEE AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB1746 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Mark Lawson

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED COMMITTEE
SUBSTITUTE FOR
HOUSE BILL NO. 1746

By: Lawson

PROPOSED COMMITTEE SUBSTITUTE

An Act relating to children; defining terms; authorizing a facility to prepare and transmit a safety plan to the Office of Juvenile Affairs when certain determination is made; providing what shall be included in a safety plan; directing the Office to approve or deny the safety plan within certain time period; providing when time period begins; authorizing a facility to transmit a safety plan at any time; providing methods by which a safety plan may be transmitted; directing the facility to retain proof of transmission; providing that the safety plan shall be deemed approved if the Office does not provide written approval or denial within certain time period; requiring a denial to state specific reasons for denial; providing that nothing shall be construed to authorize certain isolation or reduced access to services; directing the facility to maintain the safety plan and supporting documentation; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW A new section of law to be codified in the Oklahoma Statutes as Section 2-3-106 of Title 10A, unless there is created a duplication in numbering, reads as follows:

1 A. As used in this section:

2 1. "Facility" means a juvenile detention facility used for
3 secure detention pursuant to this article;

4 2. "High-risk juvenile" means a juvenile in secure detention
5 who, based on a documented incident or credible information,
6 presents an imminent risk of serious physical harm to:

7 a. the juvenile,

8 b. another confined juvenile,

9 c. facility employees or contractors, or

10 d. the public;

11 3. "Safety plan" means a written, individualized plan to
12 address the imminent safety risk posed by a high-risk juvenile
13 through time-limited interventions and stepdown criteria, while
14 maintaining access to essential services and due process
15 protections; and

16 4. "Time of transmission" means the date and time a facility
17 transmits a safety plan to the Office of Juvenile Affairs using one
18 or more methods authorized in subsection D of this section.

19 B. When a facility determines that a juvenile is a high-risk
20 juvenile, the facility may prepare and transmit a safety plan to the
21 Office of Juvenile Affairs for review pursuant to this section.

22 C. A safety plan transmitted under this section shall include,
23 at a minimum:

1 1. A summary of the triggering incident or conduct and the
2 basis for the facility's determination that the juvenile meets the
3 definition of a high-risk juvenile;

4 2. A mental health screening or evaluation, or documentation of
5 steps taken to obtain such screening or evaluation as soon as
6 practicable;

7 3. Facility incident reports and related documentation
8 supporting the determination, including use-of-force, restraint,
9 injury, or medical documentation if applicable;

10 4. The juvenile's relevant disciplinary history or prior
11 incident reports; and

12 5. A confinement and management plan that addresses, as
13 applicable:

- 14 a. hygiene and shower access,
- 15 b. meal service and food delivery procedures,
- 16 c. education services and delivery method,
- 17 d. visitation parameters,
- 18 e. telephone access parameters,
- 19 f. recreation and out-of-room opportunities as safety
- 20 permits,
- 21 g. daily administrative review,
- 22 h. daily mental health check-in or review when clinically
- 23 indicated,
- 24

- i. a stepdown plan with measurable goals and criteria for return to regular programming, and
- j. staged restoration of privileges tied to the stepdown plan.

D. 1. The Office of Juvenile Affairs shall approve or deny a safety plan in writing within twenty-four (24) hours after the time of transmission by the facility.

2. The twenty-four-hour period begins at the time of transmission and is not dependent upon acknowledgement, confirmation, or acceptance by the Office.

3. A facility may transmit a safety plan at any time, including outside normal business hours, by any of the following methods:

- a. electronic mail to any electronic mail address publicly listed by the Office for general communications or detention-related communications,
- b. facsimile to any facsimile number publicly listed by the Office for general communications,
- c. upload to a state-operated electronic portal used by the Office for receipt of facility submissions, if available, or
- d. personal delivery or commercial carrier delivery to the Office.

1 4. The facility shall retain proof of transmission, which may
2 include a timestamped sent email, facsimile transmission
3 confirmation, portal upload confirmation, or delivery confirmation.

4 5. If the Office does not provide a written approval or denial
5 within the twenty-four-hour period, the safety plan shall be deemed
6 approved by operation of law and the facility may implement the
7 safety plan immediately.

8 6. A denial shall state the specific reasons for denial and, if
9 applicable, identify revisions that would permit approval.

10 E. 1. Nothing in this section shall be construed to authorize
11 punishment-based isolation or to reduce access to essential services
12 except to the extent necessary to address the documented safety
13 risk.

14 2. A safety plan implemented under this section shall be
15 administered in a manner consistent with standards for juvenile
16 detention facilities promulgated by the Board of Juvenile Affairs
17 and other applicable law.

18 3. Approval or deemed approval under this section does not
19 limit the authority of the Office of Juvenile Affairs to monitor,
20 inspect, or enforce standards applicable to juvenile detention
21 facilities, including requiring corrective action prospectively.

22 F. The facility shall maintain the safety plan and supporting
23 documentation required by subsection C of this section and make such
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1 records available to the Office of Juvenile Affairs upon request for
2 oversight and compliance purposes.

3 SECTION 2. This act shall become effective November 1, 2026.

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5 60-2-16945 CMA 03/04/26

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